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Provision of March 7, 2024
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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code regarding the protection of personal data, containing provisions for the
adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June 30,
2003, No. 196, as amended by Legislative Decree of August 10, 2018, No. 101, hereinafter "Code");

HAVING REGARD to the complaint submitted pursuant to Article 77 of the Regulation by Mr. XX and
Mr. XX against Centro Riparazioni Piacentino S.p.A.;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISE

1. The complaint against the Company and the investigative activity.

On March 25, 2022, Mr. XX and Mr. XX submitted a complaint, regularized on July 20, 2022, following
an invitation from the Authority, against Centro Riparazioni Piacentino S.p.A. (hereinafter, the
Company), alleging presumed violations of the Regulation and in particular the "ongoing activity of
individual business accounts for several months beyond the termination of the employment
relationships [XX and XX], with simultaneous access to the messages received therein," considering
that their deletion would have been carried out, without providing adequate feedback, only following a
reminder from the complainants.

It was also complained that the right to access the content of the aforementioned accounts could not
be exercised due to the deletion of their content. According to the complainants, the Company also
failed to provide them with suitable information regarding the processing of data related to electronic
mail.

On January 2, 2023, the Company sent its response following a request for information pursuant to
Article 157 of the Code made by the Department on December 13, 2022. On that occasion, the
Company stated that:

- a. "the accounts in question have not been active since November 16, 2021" (see note 2/01/2023
cited, p. 1);
- b. "following serious behaviors taken against the company by the complainants, who were among
other things not only employees, one [...] also former Chairman of the Board of Directors and the other
[...] Support Administrator of the partner holding 50% of the shares, in a subsequent and provoked
period of staff shortages and organizational difficulties, a timely response was already given to the
opposing claim as per the attached letter" (see cited note, p. 1);
- c. "the accounts were for exclusive business use (through which orders for spare parts and means
transit), that no personal communication was ever received according to the staff member, in the
person of [Chairman of the Board of Directors], tasked with discarding material not concerning the
company" (see cited note, p. 1);
- d. "the complainants also redirected with notice all company contacts to their private addresses before

leaving the company” (see cited note, p. 1).

On April 13, 2023, the Department sent a further request for information to the Company which, on May 16, 2023, provided its response and stated that:

- a. with reference to the maintenance of the email accounts assigned to the complainants from the termination of their employment until November 16, 2021, it is specified that “the purposes were exclusively for the receipt of complaints and/or technical requests from corporate clients. Access was exclusively by the Chairman of the Board of Directors, Legal Representative. Nothing was retained” (see note 16/05/2023 cited);
- b. with reference to the prior communication to the complainants regarding the processing methods of the business accounts following the termination of the employment relationship, it is specified that “the processing methods were in accordance with the company practice adopted in similar cases by the complainants themselves in the past” (see cited note);
- c. regarding the accounts assigned to the complainants, “only various advertising material was received personally which was immediately discarded” (see cited note).

2. The initiation of the procedure and the Company's defenses.

On July 14, 2023, the Office notified the Company of the alleged violations of the Regulation found, with reference to Articles 5, paragraph 1, letters a), c), e), and 13 of the Regulation, pursuant to Article 166, paragraph 5, of the Code.

On August 1, 2023, the Company submitted its defense writings and on that occasion highlighted that: “until February 2023, the [...] Company operated as the official dealer of the Iveco Group. The holders of the accounts in question held senior roles within the company and maintained relevant and decisive correspondence with the principal IVECO, via corporate emails, for operational continuity” (see note 1/08/2023 cited, p. 1);

“the account ‘XX’ belonged to [the complainant], already Chairman of the Board of Directors [...] and head of the department.

sales [...]” (see cited note, p. 1);

“the account «XX» was under the responsibility of the [claimant], head of the spare parts department [...], as well as the supporting representative of the 50% partner, the father [...], who held a 50% share of the capital of the [...] Company” (see cited note, p. 1);

“both of the aforementioned individuals submitted their voluntary resignations in a nearly simultaneous manner [...] in order to provide their work services to another company [...] that operates in the same sector and in competition with the Company, which is still an authorized Iveco workshop” (see cited note, p. 2);

“the aforementioned individuals were well aware and fully informed of the data processing methods in use within the company, as they were prepared and managed by themselves. The [claimant] was indeed the person responsible for internal processing and the brother [another claimant] was the person at the top of the company as President of the Board of Directors [...]. In any case, both regularly signed the consent for processing based on specifically prepared forms” (see cited note, p. 2);

“the data processing system – prepared [...] by both claiming individuals – did not provide for the automatic deactivation of the accounts of terminated employees; it was therefore not possible to proceed in this manner, as the company was not equipped with adequate solutions. The deactivation of accounts was also hindered by the communication methods imposed by the principal Iveco, despite multiple reports sent regarding the necessity to no longer use the respective email addresses, including through the updating of contacts on the SAP dealer portal of IVECO SPA [...], which contained the .xls file with the company addresses authorized to receive communications [...]. Nevertheless, the Iveco Group continued to send relevant business communications for operational continuity to the same addresses, as well as to a personal address provided by the [claimant] with an automatic reply email activated by her shortly before her resignation, inviting the use of the personal account” (see cited note, p. 2);

“in light of the aforementioned situation, the only practically applicable solution to ensure the operational continuity of the company was to recover from the aforementioned accounts the relevant

and necessary business communications to ensure [...] operational continuity. In this regard, in order to minimize access to the mailboxes and avoid the dissemination of data, it was decided to identify the undersigned [...] as the legal representative of the Company and new data controller, the only person authorized to recover business communications from the addresses in question. [...] the undersigned does not hold the position of employer, which is attributed to a member of the Board of Directors” (see cited note, p. 2);

“the access to the mailboxes by the undersigned, in his capacity as data controller, did not occur indiscriminately, but rather only with reference to emails coming from the Iveco Group and related to business relationships, selected based on the sender and subject, using keywords. Access was absolutely necessary to ensure the operational continuity of the company, given the relevance of the business communications received, also considering the senior role held by the former employees” (see cited note, pp. 2, 3);

“the aforementioned accounts have in any case been definitively deleted for some time, and the [...] Company has now adopted the necessary solutions to allow for the automatic deactivation of the accounts of terminated employees and full compliance with the guidelines issued by the Authority” (see cited note, p. 3);

“it is requested [...] to take due consideration of the entirely peculiar circumstances of this case, also regarding the pretextual and instrumental nature of the complaint coming from the same individuals who managed and oversaw the company’s data processing system and who today, moreover, are engaged in activities in competition with the [...] Company” (see cited note, p. 3).

3. Outcome of the proceeding.

3.1 Established facts and observations on the regulations regarding personal data protection.

Following the examination of the statements made to the Authority during the proceeding as well as the documentation acquired, it appears that the Company, as the data controller, has carried out certain processing operations concerning the claimants, which are found to be non-compliant with the regulations regarding personal data protection concerning the processing of corporate email accounts. In this regard, it is highlighted that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Authority, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code “Falsehood in declarations to the Authority and interruption of the execution of the tasks or exercise of the powers of the Authority.”

The data controller, based on the provisions of Article 13 of the Regulation – which constitutes a direct expression of the principle of transparency (see Article 5, paragraph 1, letter a) of the Regulation) – before carrying out the processing, provides the data subject with information regarding the essential characteristics of the processing that it intends to carry out, also with reference to the use of tools made available within the employment relationship.

Within the employment relationship, it is necessary to fully inform the worker about the processing of their

****3.2 Violations Found.****

****3.2.1 Violation of Article 5, Paragraph 1, Letters a), c), e), of the Regulation.****

Based on the elements acquired during the investigative activity as well as the subsequent evaluations of this Department, it has been established that the Company, after the termination of the employment relationship with the complainants (in the complaint, it was stated that the complainants “ceased all positions and roles within the company on March 17, 2021”; from the attachment to the defense documents dated August 1, 2023, containing the resignation form, it was found that the resignations were submitted on February 19, 2021, effective from June 21, 2021, and on March 12, 2021, effective from July 16, 2021), kept the email accounts assigned to the complainants active until November 16, 2021, based on its own declaration; during this period, the chairman of the board of directors, the legal representative of the Company, accessed these accounts.

In this regard, in particular, the Company declared that it had kept the aforementioned accounts active to recover complaints or technical requests sent by customers (see note dated May 16, 2023) and that “Access was absolutely necessary to ensure the operational continuity of the company, given the relevance of the business communications received, also considering the senior roles held by the former employees” (see note dated August 1, 2023, p. 3).

Thus, instead of limiting itself to maintaining the accounts assigned to the complainants, simultaneously activating an automatic response message aimed at informing third parties of the imminent deactivation of the accounts and the possibility of contacting other and different email addresses, for the needs of continuity of the activity carried out for a time proportionate to its needs and without accessing the content of the same – an activity that, if carried out, would have been considered lawful – the Company instead directly accessed the content of the accounts kept active after the termination of the employment relationship.

In this regard, in fact, the Company declared that it had identified, in its legal representative, the “authorized person to recover business communications from the addresses in question” (see note dated August 1, 2023, p. 2).

To confirm the activity carried out by the Company on the accounts under examination, the Company stated that access to the mailboxes was made “with reference only to emails from the Iveco Group and related to business relationships, selected based on the sender and subject, using keywords” (see note dated August 1, 2023, p. 2, 3).

In this regard, it is specified that the exchange of electronic correspondence – whether related to work activity or not – on a company email account of an individualized type constitutes an operation that allows for the knowledge of some personal information related to the data subject (see “Guidelines of the Guarantor for email and Internet”, in G. U. No. 58 of March 10, 2007, spec. point 5.2, lett. b), and that the Guarantor has already deemed compliant with the principles regarding the protection of personal data (see among others Provision December 1, 2023, No. 602, doc. web No. 9978536; December 4, 2019, No. 216, doc. web 9215890; February 1, 2018, No. 53, doc. web No. 8159221, point 3.4.) that after the termination of the employment relationship, the data controller must proceed with the removal of the account, after deactivating it and simultaneously adopting automatic systems aimed at informing third parties and providing them with alternative addresses related to their professional activity, also ensuring to adopt appropriate measures to prevent the viewing of incoming messages during the period in which such an automatic system is in operation.

On the other hand, the mere assertion by the Company that (among other things and in any case, unsupported by any evidence) by accessing the accounts, the legal representative would have limited himself to searching for communications from the Iveco Group and related to business relationships is not sufficient to negate the unlawfulness of the processing carried out by the Company.

The search for communications that the Company deemed relevant still occurred, in fact, after accessing all the messages contained in the mailboxes.

Considering that the legal representative declared to have conducted a search after accessing all the emails, at the very least, therefore, to the external data of the communications contained in the accounts assigned to the complainants, it is specified that even the external data of the communications themselves and the attached files, in addition to the content of the emails, concern forms of correspondence assisted by...

****Guarantees of confidentiality also protected constitutionally (Articles 2 and 15 of the Constitution).****

The conduct of the Company, as the data controller (see Article 4(7) of the Regulation), which consisted of keeping active, after the termination of the employment relationship and the positions held by the claimants within the Company, the individualized corporate email accounts, accessing their content, is therefore in contrast with the principles of lawfulness, minimization, and limitation of storage as per Article 5, paragraph 1, letters a), c), and e) of the Regulation.

In particular, the Company accessed the aforementioned accounts as the data controller in the absence of any lawful basis for processing: the purpose proposed by the Company of continuing its activities could have been achieved through processing methods compliant with data protection regulations that, among other things, would have been less invasive of the claimants' privacy.

For this reason, the processing carried out also violates the principle of minimization since, through the described conduct, the Company did not limit itself to processing data that is adequate, relevant, and limited to what is necessary for the purposes for which it was processed, as well as the principle of storage limitation considering that only on November 16, 2021, among other things, prompted by the

claimants on November 3, 2021, did it proceed to delete the accounts in question; on that occasion, the Company stated that it was a "misunderstanding" that would have "been caused solely by a forgetfulness due to the serious situation of staff shortages" (see Annex 2 to the complaint).

On that occasion, the Company also stated that "if any personal communications had arrived, one of our staff members was instructed to immediately delete – without verifying the content – any email in that sense."

It is noted that the Company, on August 1, 2023, declared that it had "adopted the necessary solutions to allow for the automatic deactivation of the accounts of terminated employees and full compliance with the guidelines issued by the [Data Protection Authority]."

It is also noted the Company's declaration regarding the accounts in question, stating that "nothing has been retained" (see note dated 05/16/2023).

****3.2.2 Violation of Article 5, paragraph 1, letters a), and 13 of the Regulation.****

The conduct of the Company was also carried out in the absence of appropriate information regarding the activities that the employer would have conducted on the electronic tools (in this case, individualized corporate email accounts) assigned to the claimants after the termination of the employment relationship.

This is because the information produced by the Company (attached to the note of 08/01/2023) - even in the version attached to the form titled "consent to the processing of personal data" signed by the claimants - does not contain suitable indications regarding the processing activities that the Company actually carried out.

The Company, in fact, violated the provisions of Article 13 of the Regulation - which constitutes a corollary of the principle of transparency set forth in Article 5, paragraph 1, letter a) of the Regulation - according to which the data controller is required to provide the data subject in advance with all information regarding the essential characteristics of the processing (see Provision of March 1, 2007, No. 13 "Guidelines for email and internet").

Within the employment relationship, the obligation to inform the employee is also an expression of the general principle of fairness (see Article 5, paragraph 1, letter a) of the Regulation).

Regarding what the Company claimed about the fact that the claimants were informed about the processing methods because they were identified by them, it is emphasized, first of all, that no evidence of this has emerged: the "appointment as internal data processor" (attached to the defense writings of 08/01/2023), particularly considering its content, cannot be considered an element from which to infer that the claimant had been informed about the processing that the Company would carry out once the employment relationship had ended, on the email account assigned to her.

Nor does the fact that the other claimant was the president of the Board of Directors prove that the Company had informed him about the processing in question.

Furthermore, in any case, the obligation to provide suitable information pursuant to Article 13 of the Regulation rests with the data controller, a role that, in this case, as already specified, is held by the Company.

The rationale of what is provided for in Article 13 of the Regulation is to provide data subjects with clear indications that comply with data protection regulations regarding the processing that the controller will carry out concerning the personal data of the subjects to whom they refer: therefore, in order for it to be said that the provisions of the cited article have been respected, it is necessary that the information provided in the notice describes processing operations that are lawful in themselves (regarding the unlawfulness of the processing carried out on the email accounts consisting of access to them by a third party after the termination of the employment relationship see paragraph 3.2.1).

Regarding the reference made by the Company to the signing of the "consent to the processing...

****Based on specifically prepared forms****

(v. note 1/08/2023, p. 2) by the claimants, it is generally observed that, precisely due to the power imbalance between the employer and the employee, it is unlikely, except in particular cases to be identified on a case-by-case basis, that the employee freely gives their consent to the employer (see in this regard Guidelines on consent pursuant to the Regulation adopted by the EDPB on May 4, 2020, which, referring to Opinion 2/2017 on the processing of data in the workplace, pp. 6-7, states that “the Committee considers it problematic for the employer to process the personal data of current or future employees based on consent, as it is unlikely that this will be given freely. For most processing activities carried out in the workplace, the legitimate basis cannot and should not be the employee's consent (Article 6, paragraph 1, letter a)) considering the nature of the relationship between employer and employee.”)

****4. Conclusions: Declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation.****

For the reasons stated above, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are therefore unsuitable to allow for the closure of the present procedure, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply. The processing of personal data carried out by the Company, and specifically the processing carried out after the termination of the employment relationship on the email accounts assigned to the claimants, among other things, in the absence of adequate information, is indeed unlawful, as outlined above, in relation to Articles 5, paragraph 1, letters a), c), e), and 13 of the Regulation. The violation, ascertained in the terms stated in the reasoning, cannot be considered “minor,” taking into account the nature and severity of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation). Therefore, in light of the corrective powers attributed by Article 58, paragraph 2 of the Regulation, in light of the specific case, an administrative monetary sanction is imposed pursuant to Article 83 of the Regulation, proportionate to the circumstances of the specific case (Article 58, paragraph 2, letter i) of the Regulation).

****5. Adoption of the injunction order for the application of the administrative monetary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).****

At the conclusion of the procedure, it is found that Centro Riparazioni Piacentino S.p.A. has violated Articles 5, paragraph 1, letters a), c), e), and 13 of the Regulation. For the violation of the aforementioned provisions, the application of the administrative monetary sanction provided for by Article 83, paragraph 5, letters a) and b) of the Regulation is foreseen, through the adoption of an injunction order (Article 18, Law 24.11.1981, No. 689). It is deemed necessary to apply paragraph 3 of Article 83 of the Regulation where it states that “If, in relation to the same processing or related processing, a data controller [...] violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation,” the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5.

With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the purpose of applying the administrative monetary sanction and its quantification, considering that the sanction must “in any case [be] effective, proportionate, and dissuasive” (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

- a) in relation to the nature, gravity, and duration of the violation, the nature of the violation has been deemed relevant as it concerned, among other things, the general principles of processing, including the principles of lawfulness, transparency, fairness, and minimization;
- b) with reference to the intentional or negligent nature of the violation and the degree of responsibility of the controller, the conduct of the Company and its degree of responsibility have been taken into account, as it did not comply with the data protection regulations concerning a plurality of provisions;
- c) in favor of the Company, account has been taken of the cooperation with the supervisory authority

demonstrated during the procedure.

It is also considered that the economic conditions of the offender, determined based on the revenues achieved by the Company with reference to the ordinary financial statements for the year 2022, are relevant in this specific case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation). Lastly, account is taken of the amount of sanctions imposed in similar cases.

In light of the aforementioned elements and the evaluations made, it is deemed appropriate, in this specific case, to impose on Centro Riparazioni Piacentino S.p.A. an administrative sanction of payment of an amount equal to €20,000 (twenty thousand).

In this context, it is also considered, in light of the type of violations identified that pertained to the general principles of processing as well as the obligation to inform about the processing of personal data, that pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019, the publication of this provision on the Authority's website should proceed.

It is also deemed that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

finds the unlawfulness of the processing carried out by Centro Riparazioni Piacentino S.p.A., represented by its legal representative, with registered office at Via Piemonte, 11, Piacenza (PC), Tax Code 00307180331, pursuant to Article 143 of the Code, for the violation of Articles 5, paragraph 1, letters a), c), e), and 13 of the Regulation;

ORDERS

Centro Riparazioni Piacentino S.p.A. to pay the sum of €20,000 (twenty thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to Article 27 of Law No. 689/1981. It is reminded that the offender retains the option to settle the dispute by paying – always according to the methods indicated in the attachment – an amount equal to half of the imposed sanction, within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below (Article 166, paragraph 8, of the Code);

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation to Centro Riparazioni Piacentino S.p.A., to pay the sum of €20,000 (twenty thousand) as an administrative pecuniary sanction for the violations indicated in this provision:

DISPOSES

the publication of this provision on the Authority's website pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019, and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Requests Centro Riparazioni Piacentino S.p.A. to communicate what initiatives have been undertaken to prepare a system for the automatic deactivation, after the termination of the employment relationship, of individualized corporate email accounts as well as to comply with the provisions of Article 13 of the Regulation regarding the processing of corporate email accounts after the termination of the employment relationship and to provide adequately documented feedback pursuant to Article 157 of the Code, within 90 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for by Article 83, paragraph 5, letter e) of the Regulation. In case of non-compliance with the prohibition provision, the provisions of Article 170 of the Code shall apply.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be submitted to the ordinary judicial authority, with an application filed at the ordinary court of the place identified in the same Article 10,

within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, March 7, 2024

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Cerrina Feroni

THE SECRETARY GENERAL

Mattei